

ASPI pitch deck

The court artifacts directory is read-blocked this session, so I'll deliver the deck directly here, built entirely from the evidence pack and the two bench reports.

PITCH — ASPI — PROPOSED VERDICT

PROPOSED — PENDING ADJUDICATION: Stay out (no position, no resting orders, nothing into the August 14 report). Re-open only if helium production is physically confirmed by a third party AND the next 10-Q shows at least \$150M of unrestricted cash at the parent company.

What we believe

ASP Isotopes at \$4.43 is not the bargain the original write-up claimed. The write-up's core idea was that ASPI is the one company in its beaten-down peer group with signed customer contracts and first production less than 60 days away, unfairly marked down alongside companies that have nothing. Both of our internal review teams — one assigned to attack the idea, one assigned to defend it — concluded that premise is wrong on the facts:

- **The helium plant is not producing helium today.** The company's own August 4 shareholder letter says helium production is expected "to commence... prior to September 30, 2026" — future tense, with pipeline tie-in work still incomplete ([primary source: the letter](#)). This same plant has a five-year history of missing this exact milestone: targeted 2021, first produced liquid helium January 2023 (a cold-box leak shut it down), restarted April 2024 (down again), and still nothing commercial in August 2026. It has been commissioned and broken twice — which is arguably worse evidence than never having run.
- **The customer contracts cover only about 15% of the plant's claimed capacity.** The letter itself says so. Roughly 85% of the touted ~\$27M/year helium revenue is aspiration, not contract.
- **More shares are likely coming.** About \$110.7M of 8% convertible notes remain outstanding after a first exchange that printed at roughly \$4.71/share. The same treatment on the residual would add ~23.5M shares — about 16% more dilution — and the company filed a shelf registration the day after the first exchange.

What survives on the bull side: the company raised ~\$290M, owns ~89% of the helium subsidiary, completed Phase-1 drilling four months ahead of schedule, and the historical failures happened under a prior, capital-starved owner. That caps how bearish we should be, but it doesn't make the stock ownable today.

What the market believes

The stock is down 69% from its 52-week high of \$14.49 but 26% above its 52-week low of \$3.51. The market is treating ASPI like the rest of its pre-revenue cohort: a story stock whose production dates have slipped repeatedly, with a large convertible-note overhang and an active shelf registration. Our attacking team’s conclusion, which the defending team largely accepted, is that the market has this roughly right — the price reflects the realistic base rate for a plant that has missed this milestone for five years, not an overreaction. Note this is a covered name (Canaccord and Citi conferences, published estimates), so “the market just hasn’t looked” is not available as an argument.

Why we might have edge

Honestly: not much, and not yet. The one genuine asymmetry is that the decisive questions are *checkable* before the market fully re-prices them:

1. **Physical confirmation of helium production** by September 30 — verifiable through satellite/thermal observation of the plant (once we have surveyed coordinates) or customs bills of lading once product ships to the Asian buyer. Confirmation ahead of a press release would be real, tradeable information.
2. **Where the cash actually sits.** The claimed ~\$121M net cash has never been verified as parent-level and unrestricted; some sits in South African rand under exchange control, and \$20M is committed to the subsidiary spin-off. The next 10-Q can settle this.
3. **The regime change is real.** New owner, ~\$290M raised, drilling finished early. If the plant’s past failures were a funding problem rather than an engineering problem, the base rate everyone (including our own attacking team) is using overstates the risk.

Why it might be priced in

The market’s skepticism is grounded in the company’s own disclosures: the future-tense production language, the 15% contract coverage, the convertible overhang and shelf registration are all public. A stock 26% off its low already embeds some probability of eventual success. And “reaffirmed guidance” from a management chain that has missed the same date repeatedly since 2021 is not new information — the August 14 report is likely to be noise (presentation changes, a stale share count, a probable accounting reclassification of the helium unit as held-for-sale) rather than resolution. The real resolvers come later: the September 8 London capital-markets day and the September 30 production deadline.

What we checked ourselves

Claim	How checked	Found	Confirmed?
“First production inside 60 days; operating business intact”	Fetches the Aug 4 shareholder letter + trade-press history of the plant	Letter says production “to commence” before 9/30/26 — future tense; tie-ins incomplete; plant has produced-then-failed twice since 2023	Refuted. Original write-up graded a promise as an observation
Attacking team’s claim the plant was “never commissioned”	Defending team pulled Moneyweb/gasworld production history	Plant DID produce liquid helium twice (Jan 2023, Apr 2024) before failing both times	Our own attacker erred — overdrawn wording, though the

Claim	How checked	Found	Confirmed?
			corrected version is stronger evidence of the slip pattern
“Demand de-risked by take-or-pay contracts”	The company’s own letter	Contracts $\approx$ 15% of Phase-1 capacity	Refuted in magnitude
$\sim$ \$121M net cash available	Letter re-read for cash location	Silent on parent-vs-subsidary split; figure predates two quarters of burn and a \$20M commitment; some cash is in rand under exchange control	Not confirmed — open gap
Residual converts $\approx$ 23.5M new shares	Arithmetic re-run by both teams: \$109.2M/23.16M sh = \$4.71; \$110.7M/\$4.71 = 23.5M	Checks out; shelf registration filed the day after the first exchange	Confirmed
“CEO sold 1.11M shares” (bear point in original write-up)	Form 4 coverage via secondary trackers (SEC index blocked us — gap)	Sales found ($\sim$ 487K sh/ $\sim$ \$2.9M over 6 months) were largely automatic tax-withholding sales against a 2.23M-share vesting grant; net exposure rose	Our own write-up erred — overturned as a bear signal; full-window total still unverified
Original write-up internal consistency	Textual check	Labels ASPI “damage arriving” in one table yet ranks it #1 under “damage absent”	Confirmed defect (cosmetic)
Live quote at decision time	IBKR snapshot attempted by both teams	Permission denied both times; \$4.43 is the pack price, not a live one	Not confirmed — infrastructure gap
Satellite/thermal check of plant activity	carbon_mapper + plant_thermal detectors run	Zero observations — town-centroid coordinates insufficient, need surveyed plant lat/lon	Uncheckable as configured
Evidence-pack integrity	Defending team’s review	Pack financial-statement block and market cap were stale (pre-consolidation, superseded); pack timestamp post-dates the session	Pack defects logged

PROPOSED ENTRY BANDS

The courts say no entry. Both teams landed flat, unanimously, including through the August 14 report. Sizing today: 0%. Reopen conditions, from the benches’ own math:

- **Reopen gate (both required, price-independent):** (1) third-party physical confirmation that the plant is actually liquefying helium — satellite/thermal observation at surveyed coordinates, or a customs bill of lading showing product shipped to the Asian buyer; AND (2) the June 30 10-Q showing $\geq$ \$150M of unrestricted cash held at the parent.
- **If both gates pass:** a starter position becomes discussable near current levels; note that $\sim$ \$4.71 (the convertible-exchange price, with $\sim$ 23.5M residual shares likely converting there) acts as a supply ceiling until the residual notes are resolved. Any post-gate entry thesis must be re-argued below that level, not above it.

- **Downside tripwire:** a break below \$3.51 (the 52-week low) with no new bad facts is a signal to re-run the review, not to buy — the slip history says price weakness here usually has a cause.
- **Additional evidence that would soften the no-entry stance:** executed definitive financing agreements with DFC/Standard Bank, or contracted share of plant capacity rising above 50%.
- **Catalyst dates:** ~Aug 14, 2026 — quarterly report (derived from a data feed, not company-confirmed; prior-quarter precedent says it may slip to ~Aug 19). Sep 8, 2026 — London capital markets day. Sep 30, 2026 — company's own stated deadline for first helium production.

ARMED SENSORS

(armed provisionally with this deck; session adjudication ratifies)

- price alert: fires below 3.51 (deck-provisional: new 52-week low - trigger re-review, not a buy)
- filing watch: 10-Q until 2027-02-05 (deck-provisional: settles parent-level unrestricted cash ($\geq \$150M$ reopen gate) and held-for-sale reclass)
- dated pack ASPI|2026-08-14: ASPI: quarterly report (feed-derived, may slip to ~2026-08-19) (date confirmed=False)
- dated pack ASPI|2026-09-08: ASPI: London capital markets day (date confirmed=True)
- dated pack ASPI|2026-09-30: ASPI: company-stated deadline for first helium production (date confirmed=True)

What remains unverified

- **Parent-level cash:** whether the ~\$121M (stale) net-cash figure is unrestricted, at the parent, and still that large after two quarters of burn and the \$20M subsidiary commitment.
- **Full insider-selling totals:** the original 1.11M-share/\$6.7M claim — SEC Form 4 index blocked our pull; only ~487K shares are accounted for as tax-related.
- **The August 14 report date** — feed-derived, not company-announced.
- **DFC / Standard Bank financing** — discussed, not shown as executed agreements.
- **Whether the helium unit will be reclassified as held-for-sale** in the 10-Q (probable, unconfirmed) — this changes how reported revenue reads.
- **Live executable price** — broker quote access failed in both bench sessions; all price math anchors to the \$4.43 pack tape.

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